

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. d/b/a Curtiss-
Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

ORDER

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court are various discovery motions filed by Plaintiff, including a Motion to Compel (Dkt. No. 105) and Motion to Strike (Dkt. No. 176). For the reasons set forth below, Plaintiff's Motions (Dkt. Nos. 105, 176) are **DENIED**.

DISCUSSION

Plaintiff filed the instant Motion to Compel on September 16, 2025. (Dkt. No. 105.) In her Motion, Plaintiff requests an Order from the Court: (1) compelling Defendants to respond to her discovery requests, (2) enforcing a nonparty subpoena directed to her former attorney, Bonnie Hunt of Hunt Law LLC, and (3) allowing Plaintiff to conduct a "narrowly tailored Rule 34(a)(2)

inspection of [Defendant Curtiss Wright's] premises. (*Id.* at 1.) More specifically, Plaintiff takes issue with Defendants' purported failure to produce a "timekeeping audit trail . . . showing who altered Plaintiff's hours, when, and why," and claims that Defendants' response to two of her Requests for Production are insufficient because Defendants aver that no responsive documents exist, which Plaintiff believes is untrue. (*See generally id.*) Plaintiff also appears to contend that Defendants and/or Defense counsel "compensated her former attorney." (*Id.* at 2.) Thus, Plaintiff requests that the Court enforce the nonparty subpoena she directed to her former attorney so she may prove "bias/collusion." (*Id.*)

In response, Defendants argue that Plaintiff's Motion to Compel should be denied for several reasons. (Dkt. No. 133.) First, Defendants contend that they properly responded to Plaintiff's discovery requests and, in any event, Plaintiff's Motion to Compel is premature because the discovery responses she seeks were not yet due at the time Plaintiff filed her Motion. (*Id.* at 2–4.) Second, Defendants contend that Plaintiff never requested a Rule 34 inspection and has no legitimate basis upon which to do so. (*Id.* at 4–5.) Third, Defendants contend that Plaintiff failed to confer with Defense counsel prior to filing her Motion. (*Id.* at 5–6.) In reply, Plaintiff admits that she filed her Motion to Compel (Dkt. No. 105) before sending a formal meet and confer letter to Defense counsel but nonetheless reiterates her request that the Court compel Defendants to supplement their discovery responses and "permit a limited-scope Rule 34 inspection of their premises." (Dkt. No. 139 at 3.) Upon review, Plaintiff's Motion to Compel (Dkt. No. 105) must be **DENIED**.

At the outset, Plaintiff admits that she filed her Motion prior to conferring, or attempting to confer in good faith, with Defense counsel. (Dkt. No. 139 at 3.) Accordingly, Plaintiff did not comply with Federal Rule of Civil Procedure 37(a)(1) and her Motion to Compel could be denied

on this basis, alone. *See Anderson v. Amazon.com Servs., LLC*, No. 4:23-CV-115-D, 2025 WL 1287984, at *8 (E.D.N.C. May 2, 2025) (“This court has the discretion to deny a motion to compel for failing to meet the requirements of Fed. R. Civ. P. 37(a)(1) . . .”).

Further, as Defendants correctly note, Plaintiff seeks to compel information that does not exist and/or information that was not yet due at the time she filed her Motion. (Dkt. No. 133 at 2.) With respect to Plaintiff’s claim that Defendants must produce “the timekeeping audit trail and associated metadata,” the record confirms that Plaintiff did not submit this request to Defendants until her Third Requests for Production, which she served on September 16, 2025, the same day she filed the instant Motion. (Dkt. Nos. 105-1, 133-1.) Thus, Plaintiff’s Motion to Compel (Dkt. No. 105) is **DENIED** as premature to the extent it requests an Order compelling production of the aforementioned “timekeeping audit trail and associated metadata.”

Plaintiff’s remaining qualms with Defendants’ discovery responses ask the Court to compel Defendants to produce information that is either already in Plaintiff’s possession or does not exist. As this Court has previously informed Plaintiff, it cannot compel Defendants to furnish information they do not possess. See, e.g., *Moore v. BPS Direct, LLC*, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at *2 (D.S.C. July 8, 2019) (“It is axiomatic that a party cannot be ordered to produce documents that do not exist.”); *Jackson v. Wade*, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at *5 (E.D. Va. Apr. 19, 2021), *appeal dismissed*, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) (“[A] subpoena can only direct an individual or entity to produce materials in their ‘possession, custody, or control,’ and thus cannot compel an entity to create a new document . . . out of whole cloth.”). This portion of Plaintiff’s Motion to Compel (Dkt. No. 105) is therefore **DENIED**.

Turning to Plaintiff's request that the Court permit her to inspect Defendants' premises, this request must also be **DENIED**. Pursuant to Federal Rule of Civil Procedure 26, "[p]arties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case" The Court must consider "whether the burden or expense of the proposed discovery outweighs its likely benefit" when resolving discovery disputes. *Id.* Here, the undersigned agrees with Defendants that the requested inspection is "unlikely to lead to the discovery of admissible evidence." (Dkt. No. 133 at 4.) Plaintiff seems to believe that the requested inspection of Defendant Curtiss Wright's premises will allow her to inspect the area in which she used to work, as well as "printers/equipment tied to access issues; time-clock/clock-in stations relevant to Sept. 2023." (Dkt. No. 105 at 3.) However, she fails to explain how this inspection will assist her in proving her claims and/or why she cannot obtain the information she seeks through Interrogatories and Requests for Production.¹ (*See generally* Dkt. No. 105.) Given that Plaintiff's claims stem from events occurring more than two years ago, the undersigned expects that an inspection of Defendant Curtiss Wright's present-day premises will prove less than helpful. What is more, the requested inspection would impose a significant burden on Defendant Curtiss Wright's operations. As such, Plaintiff's request for inspection must be **DENIED**.

Plaintiff's attempt for the Court to enforce a nonparty subpoena directed to Plaintiff's prior counsel must similarly be **DENIED**. Plaintiff's Motion to Compel (Dkt. No. 105) offers limited information about this subpoena, but a review of the docket, (Dkt. Nos. 164, 171, 172), and Plaintiff's Motion to Strike, (Dkt. No. 176), provides additional context.

¹ In fact, Plaintiff seems to suggest that the inspection is only necessary if "Defendants fail to produce the timekeeping audit logs and complete HR/disciplinary files identified . . . or if the production reveals gaps that require physical verification." (Dkt. No. 105 at 4.)

The record reflects that Plaintiff has filed two “Notices of Service of Subpoena” with the Court—one on October 8, 2025 and one on October 9, 2025—which both pertain to the same nonparty subpoena seeking “non-privileged communications and financial records reflecting contacts or payments between Curtiss-Wright (including its outside counsel) and Hunt/Hunt Law concerning Plaintiff.” (Dkt. Nos. 164, 171.) Plaintiff appears to have “served” the subpoena at issue on Hunt Law LLC via the South Carolina Secretary of State. (Dkt. Nos. 164, 171.) On October 9, 2025, Andrew Countryman of Countryman Law Firm filed an objection to Plaintiff’s Notices of Service on behalf of Bonnie Hunt and Hunt Law LLC, explaining that the subpoena at issue was not validly served, and that the materials requested by Plaintiff are irrelevant. (Dkt. No. 172.)

In the Motion to Strike Plaintiff filed on October 14, 2025, she asks that the Court “strike the October 9, 2025 filing by non-party counsel.” (Dkt. No. 176 at 1.) Plaintiff contends that the subpoena at issue was “expressly approved by this Court,” and that she is entitled to a “Protective Order directing that Mr. Countryman and Hunt Law, LLC shall make no further filings in this action without first obtaining leave of Court, except where responding to a direct Court order or subpoena.” (*Id.* at 4.) Plaintiff further requests that the Court “[a]ffirm” that her subpoena service to the South Carolina Secretary of State—as opposed to service upon Bonnie Hunt as the registered agent for Hunt Law, LLC—was “completed in good faith and consistent with the Court’s prior order.” (*Id.*)

Upon review, the undersigned finds no basis on which to grant Plaintiff’s Motion. Critically, this Court did not “expressly approve” the nonparty subpoena at issue here. (*See* Dkt. No. 73.) Plaintiff’s claims to the contrary are plainly incorrect. (*See* Dkt. Nos. 73, 105, 176.)

In addition, Federal Rule of Civil Procedure 45 imposes stricter limitations on discovery sought from nonparties. Indeed, “[a] more demanding variant of the proportionality analysis []

applies when determining whether, under Rule 45, a subpoena issued against a nonparty ‘subjects a person to undue burden’ and must be quashed or modified.” *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). Ultimately, giving the nonparty status “special weight,” a court must determine “whether the benefits of discovery to the requesting party outweigh the burdens on the recipient.” *Id.*; *Spring v. Bd. of Trustees of Cape Fear Cmty. Coll.*, No. 7:15-CV-84-BO, 2016 WL 4204153, at *1 (E.D.N.C. Aug. 8, 2016). Here, it does not. In fact, the “non-privileged communications” between Bonnie Hunt and/or Hunt Law LLC and Defendants and/or Defense counsel appear to have absolutely no bearing on the claims set forth in Plaintiff’s Fourth Amended Complaint.² (*See generally* Dkt. Nos. 79, 105, 164, 171, 172, 176, 178.) What is more, Plaintiff has failed to demonstrate why she cannot obtain the requested materials from Defendants. (*See generally* Dkt. Nos. 105, 176.)³

Further, Plaintiff’s request for a protective order prohibiting attorneys Countryman and Hunt from submitting additional filings with the Court simply lacks merit. Not only does this request misconstrue Federal Rule of Civil Procedure 26(c), but the record clearly indicates that the only filings submitted by Countryman on behalf of Hunt pertain to the Notices of Service of Subpoena Plaintiff filed involving Bonnie Hunt and Hunt Law LLC. (*See generally* Dkt. Nos. 172, 179.) Accordingly, Plaintiff’s Motion (Dkt. No. 176) is **DENIED IN FULL**.

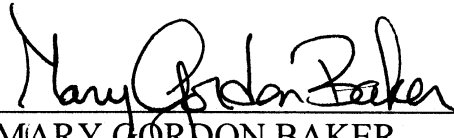
² It is worth noting that Plaintiff was provided a copy of her casefile when Bonnie Hunt withdrew as counsel for Plaintiff. (Dkt. No. 172 at 1.)

³ Because the information requested in the subpoena at issue is irrelevant to Plaintiff’s claims, whether the subpoena was validly served is immaterial and the undersigned need not address this argument; Plaintiff’s requests to enforce the subpoena are **DENIED**, regardless.

CONCLUSION

For the foregoing reasons, Plaintiff's Motion to Compel (Dkt. No. 105) and Motion to Strike (Dkt. No. 176) are **DENIED**.

IT IS SO ORDERED.



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE

October 20, 2025
Charleston, South Carolina